

T.V.George (Counter Claim) vs Shishir Chand on 7 March, 2025

IN THE COURT OF MS AUNRADHA JINDAL, ADDL.
SENIOR CIVIL JUDGE-CUM- JUDGE SMALL CAUSE
COURT-CUM-GUARDIAN JUDGE, DISTRICT: SOUTH,
NEW DELHI

CS SCJ 1170/22
T.V.GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND

CNR No. DLST03-002041-2022

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.....COUNTER CLAIMANT

VERSUS

Mr. SHISHIR CHAND
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.....COUNTER DEFENDANT

CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .1/41
COUNTER CLAIM UNDER ORDER 8, RULE 6A OF CPC

Date of institution	:	16.11.2022
Date of reserving judgment	:	09.01.2025
Date of pronouncement of judgment :		07.03.2025

JUDGMENT

The Case

1. The present counterclaim arises out of a suit filed by the plaintiff against the defendant, an advocate with over two decades of legal practice, alleging professional negligence and seeking a refund of legal fees. The defendant, who has been practicing before the Hon'ble Supreme Court of India since 2001 and has served as an Advocate on Record since 2004, refutes these allegations, asserting that the suit is nothing more than a vindictive attempt to harass him and tarnish his professional reputation. The counterclaim seeks damages for the reputational harm, mental agony, and financial losses suffered by the defendant due to the plaintiff's deliberate misrepresentations, suppression of material facts, and malicious intent.

2. The dispute originates from the plaintiff's engagement of the defendant to represent him in a consumer complaint before the National Consumer Disputes Redressal CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .2/41 Commission (NCDRC) concerning the alleged wrongful death of his brother due to medical negligence. The defendant diligently handled the case, completing all pleadings, drafting interrogatories, filing interlocutory applications, and ensuring that the case proceeded without delays. However, after the pleadings and evidence were concluded in October 2016, the plaintiff unilaterally informed the defendant that his services were no longer required and opted to handle the case personally.

3. Despite the plaintiff assuming control over the case, he later filed the present suit against the defendant in 2021, alleging deficiencies in legal representation and professional misconduct. The plaintiff's core allegations include the defendant's alleged failure to challenge the authenticity of the treating doctor's MBBS degree, negligence in opposing interrogatories filed by the opposite parties, and purported conflict of interest due to the defendant's unrelated professional engagements with Tata Group companies. The plaintiff further accuses the defendant of causing unnecessary delays in the case and failing to advocate for additional compensation in the consumer complaint.

4. The defendant, in response, contends that the plaintiff has deliberately suppressed crucial judicial findings that conclusively upheld the doctor's qualifications in multiple proceedings before the Hon'ble Delhi High Court and the Hon'ble Supreme Court of India. The defendant had, in fact, advised the plaintiff against making baseless allegations regarding the doctor's degree without irrefutable proof, as CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .3/41 evidenced by email correspondence dated 03.11.2016. Furthermore, the defendant asserts that all delays in the consumer complaint arose after the plaintiff discharged him and took charge of the case himself.

5. The counterclaim highlights that the plaintiff's allegations are not only baseless but have also been made with malicious intent. By filing the present suit at the defendant's Supreme Court chamber, circulating copies of the plaint among colleagues, the plaintiff has deliberately sought to damage the defendant's professional reputation. The counterclaim also emphasizes that the

defendant had never represented Tata Main Hospital or Tata Steel, as falsely alleged by the plaintiff, and that his professional engagements with other Tata entities were entirely unrelated to the plaintiff's case.

6. In light of the harassment, reputational damage, and financial burden caused by the plaintiff's frivolous litigation, the defendant seeks a counterclaim for damages amounting to Rs.3,00,000/- (Rupees Three Lakhs Only), along with exemplary costs for the misuse of the judicial process. The counterclaim is firmly based on legal principles, supported by documentary evidence, and seeks to uphold the integrity of the legal profession against baseless and defamatory litigation.

7. This Court has duly considered the final arguments advanced by the parties. The Court has meticulously examined the entire record, giving careful attention to the CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .4/41 pleadings, the evidence presented, and the submissions made on behalf of the parties. Each aspect of the case has been analysed in light of the relevant facts and law, ensuring that all material brought before the Court has been fully reviewed and assessed in reaching a fair and just decision.

Counter Claim under Order VIII Rule 6A of CPC

8. The defendant is a practicing advocate, enrolled in the year 1996, and has been practicing before the Hon'ble Supreme Court of India since 2001. In 2004, the defendant was enrolled as an Advocate on Record of the Supreme Court. His legal practice primarily involves appearances before the Supreme Court, the Delhi High Court, and the National Consumer Disputes Redressal Commission (NCDRC), New Delhi. The defendant has always conducted cases entrusted to him with the highest degree of professionalism, integrity, and adherence to legal ethics.

9. On the recommendation of Dr. Kunal Saha, a previous client of the defendant who secured a compensation of over Rs.11 crores in a medical negligence case, the defendant agreed to represent the plaintiff in a case concerning the wrongful death of the plaintiff's brother due to alleged medical negligence.

10. As per the agreed terms, the plaintiff was to pay the defendant a total professional fee of Rs.40,000/- for the entire drafting and pleadings, with an appearance fee of CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .5/41 Rs.3,500/- per hearing. The defendant successfully completed all legal formalities, which included:

- o Drafting and filing the consumer complaint.
- o Preparing and filing the rejoinder affidavit.
- o Drafting and filing the evidence affidavits of three expert witnesses, apart from the complainants.
- o Framing interrogatories for seven opposite-side witnesses.
- o Preparing and filing responses to the interrogatories filed by the opposite parties.
- o Drafting and filing interlocutory applications and their rejoinders before the consumer forum.

11.The entire set of pleadings and evidence in the matter was concluded on 21.10.2016, without any delay attributable to the defendant. Upon the completion of pleadings and evidence, the plaintiff unilaterally informed the defendant that his services were no longer required. The plaintiff opted to take over the conduct of the case personally, and since then, the defendant had no involvement in the proceedings.

12.Despite the defendant's diligent and ethical conduct of the case, in 2021, the plaintiff filed a suit against the defendant seeking a refund of legal fees while making false and defamatory allegations. The core accusations made by the plaintiff in the suit include:

a) Alleged Omission to Challenge the MBBS Degree of the Opposite Party Before NCDRC: The plaintiff accused CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .6/41 the defendant of deliberately failing to challenge the validity of the MBBS degree of the opposite party in the NCDRC proceedings. However, the plaintiff deliberately suppressed material facts. The issue of the genuineness of the doctor's degree had already been adjudicated upon in multiple forums:

o Writ Petition (C) No. 277/2017 before the Delhi High Court, where the degree was found genuine (Order dated 30.08.2017).

o LPA No. 693/2017, where the Division Bench upheld the decision (Order dated 26.04.2018).

o RA No. 246/2018, where the Division Bench dismissed the review petition (Order dated 06.07.2018). o SLP (Civil) Diary No. 41865/2018, where the Supreme Court dismissed the petition (Order dated 22.11.2018). Thus, the genuineness of the MBBS degree had been conclusively upheld up to the Supreme Court. The defendant, in an email dated 03.11.2016, had specifically advised the plaintiff against raising this issue in the NCDRC without conclusive proof. Despite this, the plaintiff deliberately suppressed these judicial findings and falsely alleged professional negligence.

b) Allegation Regarding Interrogatories to an Expert Witness: The plaintiff further alleged that the defendant failed to compel Dr. Dipak Ranjan Das to respond to interrogatories filed by the opposite parties. The truth is that Dr. Das had initially supported the case but later refused to provide answers due to alleged pressure from CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .7/41 his employer. The defendant, in his professional judgment, advised the plaintiff that forcing an unwilling expert to testify might be counterproductive. However, the plaintiff disregarded this advice, discharged the defendant, and personally conducted the case, compelling Dr. Das to respond to the interrogatories. The plaintiff has conveniently withheld Dr. Das's responses, which could reveal whether this action benefited or harmed the case.

c) Allegation Regarding Additional Interrogatories by Opposite Parties: The plaintiff alleged that the defendant failed to oppose an application filed by the opposite parties seeking to submit additional interrogatories to the expert witnesses. The defendant, based on his legal experience, deemed that opposing such an application would be futile, as courts typically allow reasonable additional interrogatories. Furthermore, the plaintiff personally appeared before the Bench and submitted that he had no objection to the additional interrogatories being filed, which he has suppressed in the present suit.

d) Allegation of Delay in Consumer Case Proceedings: The plaintiff also accused the defendant of causing delays in the consumer case proceedings. However, after the completion of pleadings and evidence, the plaintiff personally took charge of the case and has been handling it since 2016. The defendant had no further role in the delay, yet, after six years of personal handling, the CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .8/41 plaintiff is attempting to shift the blame onto the defendant.

e) Allegation of Conflict of Interest: The plaintiff alleged that the defendant had a conflict of interest as he had represented Tata Motors, Tata Locomotives, and Tata Motors Finance in NCDRC matters, while Tata Main Hospital, Jamshedpur was an opposite party in the plaintiff's case. This claim is entirely baseless. Tata Main Hospital is owned by Tata Steel Limited, a separate legal entity. The defendant never represented Tata Main Hospital or Tata Steel. Representation of other Tata group companies in unrelated matters does not create a conflict of interest. The plaintiff's assertion is misleading, unfounded, and defamatory.

f) Malicious Intent of the Plaintiff and Damage to Defendant's Reputation: The present suit is a misuse of the judicial process, intended to harass and tarnish the professional reputation of the defendant. The plaintiff deliberately filed the suit at the defendant's professional chamber, Chamber No. 223, M.C. Setalvad Block, Supreme Court, causing public embarrassment and unnecessary gossip among colleagues, support staff, and others in the legal fraternity.

13.The malicious suppression of judicial findings, baseless allegations, and publication of defamatory statements have caused severe mental agony, distress, and reputational damage to the defendant. The defendant has also been CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .9/41 forced to spend considerable time, energy, and financial resources in retrieving court orders and preparing his defense.

14.Given the magnitude of harm caused, the actual monetary damages suffered by the defendant are substantial, but for the purposes of the present counterclaim, the defendant limits the claim to Rs.3,00,000 (Rupees Three Lakhs Only). In view of the facts and circumstances stated above, the defendant humbly prays for:

a) A decree of damages of Rs.3,00,000 (Rupees Three Lakhs Only) along with interest for the harassment, mental agony, and damage to professional reputation suffered by the defendant.

b) Award of exemplary costs against the plaintiff for misuse of the judicial process.

c) Any other reliefs as the Court deems fit and proper in the interest of justice.

Written Statement on behalf of Plaintiff to the Counter Claim of the Defendant

15.The Counter Claim of the Defendant is bad for lack of cause of action. It is submitted that the Counter Claim is just an intimidatory tactics and a counterblast on behalf of the Defendant to discourage the Plaintiff to pursue his legitimate rights to recover the fees paid to Defendant. It is further submitted that the Counter Claim is also a gross CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .10/41 abuse of the process of Law. The Counter Claim is liable to be rejected for the lack of Court Fee.

16.The Plaintiff is filing this reply affidavit purely out of high regard and respect for this Hon'ble Court and in compliance to this Court Order dated 16.11.2022 passed in this instant Suit directing the Plaintiff to file a reply to the Counter Claim of the Defendant. The Plaintiff craves leave of this Court to file detailed para-wise counter affidavit to the counter claim as and when directed by this Court.

17.At the outset, it is vehemently and vociferously denied that the Plaintiff has filed the present Suit by suppressing material facts with respect to findings of Hon'ble Delhi High Court qua qualification of a fake doctor. On the contrary, it is submitted that it is the Defendant pursuant to being exposed of having connived and colluded with the Tatas has made an attempt to mislead and obfuscate this Hon'ble Court with proceedings before Hon'ble Delhi High Court qua qualification of a Tata employed impersonator while suppressing and concealing the fraud played by the Tatas on Hon'ble Delhi High Court in conspiracy with Ranchi University, a party to the medical scam of which the fake doctor is a beneficiary.

18.It is humbly submitted that granular details of proceedings before Hon'ble Delhi High Court qua qualification of the Tata impersonator has been exhaustibly and comprehensibly dealt with by the Plaintiff under Para 1 of Rebuttal to Preliminary Submission" of Rejoinder dated CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .11/41 13.10.2022 filed by the Plaintiff before this Hon'ble Court and the same may be read as part and parcel of this instant reply and therefore, not repeated herein for the sake of brevity and to avoid duplication and prolixity.

19.That insofar as allegation of the Plaintiff that the Defendant in collusion with Opposite Party did not advance argument at NCDRC on 16.08.2016 on the settled law on admissibility of evidence in consumer proceedings and allowed the Expert Medical Opinion of a key witness of the complainants to be expunged from the case record of the consumer case, the same has been substantiated by the Plaintiff under Para 2 of" Rebuttal to Preliminary Submission" of Rejoinder dated 13.10.2022 filed

by the Plaintiff before this Hon'ble Court and the same may be read as part and parcel of this instant reply and therefore, not repeated herein for the sake of brevity and to avoid duplication and prolixity.

20. That insofar as allegation of conflict of interest of the Defendant with the Tatas is concerned, the same has been substantiated by the Plaintiff under Para 76 of " Rebuttal to Preliminary Submission" of Rejoinder dated 13.10.2022 filed by the Plaintiff before this Hon'ble Court and the same may be read as part and parcel of this instant reply and therefore, not repeated herein for the sake of brevity and to avoid duplication and prolixity.

21. It is denied that the present case is an abuse of the process of law and intended to harass and tarnish the professional CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .12/41 reputation of the defendant. It is therefore humbly prayed that the present counter claim of the Defendant may be dismissed by this Court at the threshold with exemplary cost against the Defendant and the Prayer of the Plaintiff as made out in his Recovery Suit be granted in the interest of substantive justice.

Determination of Issues

22. During the course of proceedings, the following issues were framed in the Counter Claim:-

1. Whether counter claimant is entitled to decree for recovery of damages of an amount of Rs. 3,00,000/-, along with interest, as prayed for in prayer clause (a)? OPCC.
2. Whether present suit has been filed without any cause of action? OPR.
3. Whether appropriate court fee has not been filed in the present matter? OPR.
4. Relief.

Evidence

23. In the present Counter Claim, vide order dated 24.04.2023, both parties consented to treating the evidence recorded in the connected matter, CS No. 908/2021, as evidence in this case. The court allowed the request. Accordingly, the evidence recorded in CS No. 908/2021 is reproduced below:

CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .13/41 Plaintiff's Evidence PW-1/ Sh. Shishir Chand, Plaintiff

24. PW-1 tendered evidence through an affidavit, exhibited as Ex. PW1/A, which bore signatures at points A and B. In support of the case, PW-1 relied upon the following documents:

- o Mark A : Copy of the consumer complaint dated 04.04.2013 filed by defendant at NCDRC.
- o Ex. PW1/1 (colly) : Copy of bank account statement of plaintiff.
- o Mark B : Copy of order dated 30.04.2013 passed by NCDRC.
- o Mark C : Copy of order dated 18.11.2013 passed by NCDRC.
- o Ex. PW1/2 (colly.) (9 pages): Copy of emails exchanged between plaintiff and defendant in January, March and April, 2016.
- o Mark D : Copy of order dated 16.02.2016 passed by NCDRC.
- o Mark E : Copy of order dated 12.08.2016 passed by NCDRC.
- o Ex. PW1/3 : Copy of synopsis for final arguments shared by defendant with the plaintiff on email.
- o Ex. PW1/4 : Copy of bank account statement of plaintiff.
- o Mark F : Copy of application filed by plaintiff before NCDRC seeking discharge of defendant.
- CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .14/41
- o Mark G : Copy of newspaper report published in the Telegraph, Calcutta Edition.
- o Mark H : Copy of orders passed by Hon'ble High Court of Delhi in writ petition civil of plaintiff no. 10452/2016.
- o Mark I : Copy of order passed by Hon'ble Supreme Court of India in civil appeal diary no. 1550/202
- o Mark J : Copy of FIR lodged by the plaintiff dated 25.07.2021.
- o Mark K : Copy of order passed by NCDRC dated 07.08.2013 in RP 626/2013.
- o Mark L : Copy of order dated 18.11.2013 passed by NCDRC in FA no. 794/2012.
- o Mark M : Copy of order dated 16.09.2014 passed by NCDRC in RP no. 3810/2013.
- o Mark N : Copy of order dated 14.01.2019 passed by NCDRC in RP no. 1196/2013.
- o Ex. PW1/5 : Copy of severance letter issued by plaintiff to defendant dated 09.07.2020.
- o Ex. PW1/6 : Copy of reply dated 10.07.2020 of defendant to the severance letter.
- o Mark O : Copy of counter affidavit filed by Ranchi University, Delhi High Court.
- o Mark P : Copy of counter affidavit filed by Dr. Atul Chhabra in Delhi High Court.
- o Mark R : Copy of RTI application and reply of UGC to the plaintiff.

o Mark S : Copy of order dated 24.05.2022 passed by Hon'ble High Court of Delhi in civil contempt case of the CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .15/41 petitioner against MCI, Tata Steel, Ranchi University and Dr. Atul Chhabra.

o Ex. PW1/7 (colly.) : Copy of email exchanged between plaintiff and defendant dated 14.09.2013 and 15.09.2013.

o Ex. PW1/8 : Certificate under Section 65 B of Indian Evidence Act.

o Mark Q (Colly.) : Copy of forged MBBS degree of Dr. Atul Chhabra along with order of Jharkhand High Court passed in criminal Misc. case titled S.S Hussan Vs. State of Bihar dated 17.05.2005.

Evidence Affidavit of PW-1 (Shishir Chand)

25.PW-1, deposed that his younger brother passed away on 21.05.2011 due to alleged impersonation, cheating, and medical malpractice by an unqualified doctor employed by Tata Steel in Jamshedpur. Seeking legal recourse, PW-1 engaged the Defendant, an advocate, in January 2013 to represent him in a consumer case before the National Consumer Disputes Redressal Commission (NCDRC), New Delhi.

26.To address the criminal aspect of the matter, PW-1 lodged an FIR No. 164/2014 at Bistupur P.S., Jamshedpur, under Sections 304 and 304A IPC against Tata Steel's General Manager and the alleged impersonator. Additionally, complaints were made to the Bihar Medical Council, followed by an appeal before the erstwhile Medical Council CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .16/41 of India (MCI). PW-1 alleged that Tata Steel, being an influential corporate entity, used its power to subvert the criminal investigation, interfere in the disciplinary proceedings, and, in collusion with the Defendant, delay, dilute, and prejudice his consumer case.

27.As a result of these alleged manipulations, 12 IPS officers from Jharkhand Police, mostly from CB-CID, were facing prosecution in Criminal Writ Petition No. 106/2009 before the Jharkhand High Court, and former MCI officials were facing contempt proceedings before the Delhi High Court in Civil Contempt Case No. 839/2019. Despite the passage of over nine years since the institution of the consumer case on 04.04.2013, PW-1 asserted that it remained pending before NCDRC, attributing the delay to the Defendant's deliberate reluctance to challenge the alleged fake medical qualifications of the impersonator between 2013 and 2016.

28.PW-1 expressed his belief that the Defendant was influenced by Tata Steel from the very inception of the case and acted in a manner prejudicial to the complainant's interest. Although suspicions regarding the Defendant's professional conduct arose in 2016, it was in March 2020 that PW-1 discovered that the Defendant had received lucrative legal briefs from various Tata Group companies after the initiation of the consumer case, thereby creating a conflict of interest. Copies of four such briefs were placed on record as evidence.

29.Despite being confronted with allegations of conflict of interest, the Defendant, in the written statement filed on 16.08.2022, failed to produce any document proving prior engagement with Tata Group companies before 04.04.2013. By concealing this relationship, PW-1 alleged that the Defendant violated Section 35 of the Advocates Act, 1961, and the Bar Council of India's Code of Ethics.

30.Between January and April 2016, PW-1 corresponded with the Defendant via email, presenting substantial evidence regarding the allegedly fake MBBS degree of the impersonator and seeking legal advice on filing an interlocutory application before NCDRC to bring the evidence on record. The Defendant, however, dismissed the suggestion, stating that no action should be taken unless there was irrefutable proof of fraud. Despite multiple attempts to engage the Defendant on the issue, including in- person meetings, PW-1 claimed that the Defendant exhibited no interest in challenging the impersonator's qualification before NCDRC.

31.Due to the Defendant's alleged negligence and MCI's inaction, PW-1 was compelled to file Writ Petition (C) No. 277/2017 before the Delhi High Court, wherein MCI, Bihar Medical Council, Ranchi University, and the impersonator were impleaded as respondents. Engaging multiple advocates, including Senior Advocate Anand Grover, PW-1 pursued legal proceedings through an LPA (No. 693/2017) and an SLP (No. 41865/2018) before the Supreme Court. During these proceedings, Ranchi University's counter CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .18/41 affidavit revealed contradictions regarding the mode of the impersonator's MBBS admission--one document indicated admission under the 85% state quota, while the MBBS Admission Register, obtained under RTI, reflected admission under the 15% CBSE quota. These contradictions were placed on record as part of the case.

32.Further, in LPA No. 693/2017, the impersonator claimed to have secured an All-India Rank of 1890 in the CBSE AIPMT 1989 exam but admitted to having no documentary proof of selection. However, records indicated that only 1400 seats were allotted under the normal course that year, further raising doubts about the veracity of the impersonator's admission claim.

33.PW-1 asserted that the impersonator's MBBS degree was forged and fraudulently issued in 1998 under the purported signature of an acting Vice-Chancellor of Ranchi University, who had criminal antecedents. Supporting evidence, including UGC's concerns over the degree's legitimacy, was placed on record.

34.During W.P. (C) No. 277/2017 proceedings, PW-1 contended that Tata Steel's counsel misled the Delhi High Court, resulting in an erroneous order. However, in subsequent contempt proceedings, the Hon'ble High Court issued notices to MCI, Tata Steel, Ranchi University, and the impersonator, indicating judicial acknowledgment of the allegations. PW-1 also scrutinized the consumer complaint filed by the Defendant at NCDRC and found it CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .19/41 deficient in several respects. The complaint failed to seek interest on compensation, did not implead the deceased's employer or the Bihar Medical

Council, and suffered from other drafting flaws. These omissions, according to PW-1, suggested a deliberate attempt by the Defendant to weaken the case.

35.Further, in 2016, the expert medical opinion of Dr. Dipak Ranjan Das, a government cardiologist who had furnished evidence in favor of PW-1's case, was expunged from the NCDRC record due to non-reply to interrogatories. PW-1 accused the Defendant of failing to oppose this move, despite the settled law laid down by the Supreme Court in the Dr. Kunal Saha case regarding the admissibility of expert medical opinions in consumer proceedings. Consequently, PW-1 personally appeared before NCDRC and successfully secured the reinstatement of Dr. Das's expert opinion, proving that the expunction was unjustified.

36.PW-1 further stated that his last professional engagement with the Defendant was in January 2017, when the Defendant was asked to draft a synopsis for final arguments. Upon reviewing the four-page document, PW-1 found it to be superficial, lacking legal references, and ineffective in countering the opposing arguments. Dissatisfied, he engaged another advocate to prepare a more robust argument.

37.Ultimately, PW-1 suspended the Defendant's services in February 2017 and formally moved an application (IA No. CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .20/41 3290/2020) before NCDRC in March 2020 to discharge the Defendant. Subsequently, a Letter of Severance was issued on 09.07.2020, wherein PW-1 posed nine questions to the Defendant regarding professional misconduct and sought a refund of Rs. 97,500/- in legal fees. The Defendant neither responded to the allegations nor refunded the amount, prompting PW-1 to pursue legal recovery.

38.To substantiate the fee payment, bank statements were placed on record. Additionally, PW-1 stated that due to the Defendant's alleged deficiencies, he had to engage multiple advocates at the Hon'ble High Court and Hon'ble Supreme Court, incurring additional costs of approximately Rs. 2,00,000/-. Eventually, NCDRC allowed IA No. 3290/2020 on 28.03.2022, formally relieving the Defendant from his role in the case.

39.PW-1 concluded that the Defendant's unprofessional conduct, conflict of interest, negligence, and deficiency in service severely prejudiced the consumer case, caused undue delay, and imposed an additional financial burden.

Cross-examination of PW-1

40.During cross-examination, PW-1 was confronted with the fact that Writ Petition (C) No. 277/2017 had been filed before the Hon'ble High Court of Delhi and that a final order had been pronounced in the said writ petition on 30.08.2017. While acknowledging the pronouncement of the order, PW-1 categorically denied the suggestion that the CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .21/41 said order contained a conclusive finding on the authenticity of Dr. Atul Chhabra's medical degree. The court had merely recorded that it found no immediate reason to further verify his qualification based on the documents produced before it at

that stage. However, these documents, including a copy of the MBBS degree, had been placed before the court without an accompanying affidavit and had never been subjected to forensic scrutiny.

41.PW-1 further submitted that the said order had been challenged before the Division Bench of the Hon'ble High Court of Delhi in LPA No. 693/2017. The Division Bench, in its order dated 26.04.2018, had not rendered any absolute or final finding on the authenticity of Dr. Atul Chhabra's degree but had merely observed that he had attended a medical college and had produced a degree before the court. No forensic examination of the degree had been conducted at any stage. PW-1 had also filed a Review Petition (R.A. No. 246/2018), which was dismissed, and subsequently, a Special Leave Petition (SLP No. 41865/2018) before the Hon'ble Supreme Court of India, which was dismissed in limine. However, PW-1 emphasized that a dismissal in limine did not amount to an affirmation of findings on merit, nor did it create any binding precedent in law.

42.It was incorrect to suggest that these orders had been suppressed or withheld from the present suit. The reason for their omission was that the present case pertained to the professional misconduct of the defendant in handling the CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .22/41 consumer complaint before the NCDRC, and the findings of the Hon'ble Delhi High Court in a writ petition were not directly relevant to this issue. The qualification of Dr. Atul Chhabra remained in dispute, and fresh evidence had emerged establishing that his educational credentials, including his Intermediate (10+2) and B.Sc. degree, were fraudulent. FIRs had been lodged, and multiple court proceedings were ongoing in this regard.

43.Concerns regarding Dr. Atul Chhabra's qualifications had been raised as early as January 2016, and multiple emails had been sent to the defendant regarding these apprehensions. In response, the defendant had stated that he was not in favor of bringing up the issue of the degree unless there was irrefutable proof of its falsity. However, subsequent investigations had revealed that Dr. Atul Chhabra was indeed in possession of multiple fake degrees. The defendant's failure to challenge his qualifications at the appropriate time had resulted in unnecessary delays and had prejudiced the consumer case.

44.It was also incorrect to suggest that the suit had been filed without taking legal advice. Having been actively litigating in various forums for over a decade, PW-1 was well aware of the professional lapses committed by the defendant. These included the failure to challenge the doctor's qualification, failure to properly represent the case, which led to the expunging of crucial expert medical opinion, and the revelation that the defendant had later received lucrative CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .23/41 briefs from Tata Group companies after being engaged as counsel in the NCDRC case.

45.Evidence had been placed on record showing that the defendant had been engaged in four cases by Tata Group companies after the institution of the consumer complaint in 2013. It was firmly believed that the defendant had not represented Tata Motors before this engagement. Details of these cases had been obtained from the NCDRC website, Google searches, and RTI applications. The defendant had not produced any documents to establish that he had been engaged by Tata Group companies before being retained by PW-1, reinforcing the belief that he had been induced by Tata

Sons with lucrative briefs in a quid pro quo arrangement.

46. During further cross-examination, PW-1 reiterated that the reply given by Dr. Deepak Ranjan Das had not been filed before this court. However, it was clarified that Dr. Das, a cardiologist employed by the State Government of Odisha, had initially provided expert medical opinion in support of the case but was later subjected to intimidation by Tata Steel, leading him to express his inability to assist further. The defendant had failed to challenge the expunging of Dr. Das's expert opinion from the record, despite the settled legal position established in the landmark Dr. Kunal Saha case, which held that the Evidence Act did not strictly apply to consumer proceedings and that cross-examination was not mandatory. Consequently, PW-1 had appeared in person before the NCDRC and successfully argued for the CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .24/41 reinstatement of Dr. Das's expert opinion, leading to the issuance of a fresh notice to him. Dr. Das had ultimately furnished replies to the interrogatories, which further strengthened the case by reaffirming that the patient's death had resulted from gross medical negligence.

47. The defendant had also failed to implead crucial parties such as the Bihar Medical Council, which had issued a medical license to the doctor, and the employer of the deceased brother, Timken India Ltd. Given the severity and gravity of the case, these entities should have been made parties in the consumer complaint. The defendant's omissions had severely compromised the case and delayed its resolution.

48. It was incorrect to suggest that media attention had been pursued solely for publicity. As the Delhi Coordinator of PBT India, an NGO dedicated to assisting victims of medical negligence, PW-1 had a duty to highlight such cases. However, the discharge of the defendant had been solely based on his professional misconduct and not for personal gain.

49. Regarding the delay in seeking interest on compensation, PW-1 acknowledged that IA No. 3291/2020 had been filed before the NCDRC seeking an additional prayer for interest from the date of filing the complaint. Although this application had been dismissed due to a delay of seven years, it did not negate the defendant's initial lapse in failing to explicitly pray for interest in the original complaint.

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50. It was categorically denied that the allegations against the defendant were baseless. The professional misconduct, negligence, and deficiency in service on the defendant's part had been established through multiple instances, including his failure to challenge the fraudulent qualification of the treating doctor, his inaction when key expert evidence was expunged, and his conflict of interest in accepting engagements from Tata Group companies after taking up the consumer case.

Defendant's Evidence DW-1/ Sh. T. V. George, Defendant

51.DW-1/Defendant, Sh. T. V. George, tendered his evidence by way of an affidavit, which was exhibited as Ex. DW1/1, bearing his signatures at points A and B. In support of his testimony, DW-1 relied upon the following documents:

o Ex. DW1/2 - Certified copy of the final order passed by the Hon'ble NCDRC in F.A. No. 394 of 2019 dated 12.01.2024.

o Ex. DW1/3 - Certified copy of the final order passed by the Hon'ble NCDRC in Consumer Complaint No. 2860 of 2017 dated 11.10.2023.

o Ex. DW1/4 - Certified copy of the final order passed by the Hon'ble NCDRC in RP No. 3123 of 2016 dated 28.08.2019.

CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .26/41 o Ex. DW1/5 - Certified copy of the final order passed by the Hon'ble NCDRC in RP No. 3464 of 2016 dated 13.11.2023.

o Ex. DW1/6 - Certified copy of the final order passed by the Single Judge of the Hon'ble High Court of Delhi in W.P. (C) No. 277 of 2017 dated 30.08.2017.

o Ex. DW1/7 - Certified copy of the final order passed by the Division Bench of the Hon'ble High Court of Delhi in LPA No. 693 of 2017 dated 26.04.2018.

o Ex. DW1/8 - Certified copy of the final order passed by the Division Bench of the Hon'ble High Court of Delhi in Review Petition No. 246 of 2018 in LPA No. 693 of 2017 dated 06.07.2018.

o Ex. DW1/9 - Certified copy of the final order passed by the Hon'ble Supreme Court in SLP (C) Diary No. 41865 of 2018 dated 22.11.2018.

o Ex. DW1/10 - Certified copy of the order in RP No. 4428 of 2009 dated 29.08.2013, passed by the Hon'ble NCDRC.

o Mark DW1/A - Copy of the order in RP No. 2564 of 2010 dated 03.09.2010, passed by the Hon'ble NCDRC. o Ex. DW1/11 (Colly.) - Certified copy of the record of proceedings in Consumer Complaint No. 83 of 2013.

Evidence Affidavit of DW-1 (Defendant, T.V. George)

52.T.V. George, an advocate with over two decades of legal practice, has built a reputation for professionalism and integrity. Enrolled in 1996, he has been practicing before CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .27/41 the Hon'ble Supreme Court since 2001 and was recognized as an Advocate-on-Record in 2004. His legal career spans multiple courts, including the Hon'ble Delhi High Court and the Hon'ble National Consumer Disputes Redressal Commission (NCDRC), with around 400 reported judgments in esteemed law journals

such as SCC and AIR. Throughout his career, he has conducted cases with utmost sincerity, diligence, and adherence to legal ethics.

53. In January 2013, the plaintiff, on the recommendation of Dr. Kunal Saha, a well-known figure in medical negligence litigation, engaged his legal services for a case concerning the alleged wrongful death of the plaintiff's brother due to medical negligence. A fee structure was agreed upon--Rs. 40,000 for drafting pleadings and Rs. 3,500 per appearance. The defendant meticulously handled all aspects of the case, including filing pleadings, drafting interrogatories, responding to the opposite party's interrogatories, and filing interlocutory applications before the NCDRC. By 21st October 2016, all pleadings and evidence were completed without any delays attributable to him.

54. However, shortly after, the plaintiff informed the defendant that his services were no longer required and that he would personally handle the case. The decision to discharge the defendant was not due to any deficiency in service but rather because the plaintiff sought to gain personal recognition and media attention. Since then, the plaintiff actively engaged CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .28/41 with print and electronic media, portraying himself as a legal crusader.

55. After taking over the case, the plaintiff began filing a series of unnecessary and counterproductive interlocutory applications before the NCDRC. When the commission did not rule in his favor, he made baseless allegations of bias against its members, leading to multiple judges recusing themselves from the matter. This resulted in considerable delays in the case, which the plaintiff later sought to attribute to the defendant.

56. Three years after the consumer complaint was filed, the plaintiff raised concerns regarding the authenticity of the doctor's MBBS degree, urging the defendant to incorporate this claim into the case. The defendant, exercising professional caution, advised against making such allegations without conclusive proof, a position he communicated to the plaintiff via email on 3rd November 2016. The plaintiff, however, disregarded this legal counsel and proceeded to approach the Delhi High Court and the Supreme Court through different advocates. These courts, after hearing the matter in multiple proceedings between 2017 and 2018, conclusively upheld the validity of the doctor's degree. The plaintiff, despite these rulings, suppressed this fact and continued making false accusations against the defendant.

57. Another grievance raised by the plaintiff was that the defendant had not compelled Dr. Deepak Ranjan Das, a CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .29/41 government cardiologist and a key expert witness, to respond to interrogatories filed by the opposite party. Initially, Dr. Das provided an expert medical opinion favoring the plaintiff's case. However, due to alleged pressure from his employer, he later refused to respond to the interrogatories. The defendant, exercising professional judgment, cautioned that forcing an unwilling witness to testify could be detrimental to the case. The plaintiff ignored this advice and later coerced Dr. Das into submitting responses. Despite this, the plaintiff refused to place Dr. Das's replies on record before the court, giving rise to a strong presumption that the replies were unfavorable to him.

58.The plaintiff further alleged that the defendant had caused delays in the consumer complaint's disposal. In reality, the defendant had completed all pleadings and evidence by October 2016, and was never given the opportunity to argue the case. After assuming control, the plaintiff himself managed the case for over six years, yet later sought to blame the defendant for the prolonged litigation.

59.The plaintiff also raised concerns over the structure of the legal submissions made by the defendant, particularly regarding a four-page synopsis filed before the NCDRC. The defendant clarified that NCDRC had specifically directed both parties to submit short summaries of no more than 3-4 pages, which he duly complied with. The plaintiff's claim stemmed from a misunderstanding between a synopsis and a detailed written submission.

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60.Another major allegation involved a purported conflict of interest between the defendant and Tata Group companies. The plaintiff accused the defendant of colluding with Tata Steel, as he had previously represented Tata Motors, Tata Finance, and TELCO in other cases. The defendant refuted these allegations, pointing out that these companies were separate legal entities from Tata Steel and Tata Main Hospital and that he had never advised or represented Tata Steel in any matter, let alone in the plaintiff's case.

61.The plaintiff also asserted that the defendant failed to seek interest on the compensation amount in the consumer complaint. However, the NCDRC itself ruled that no separate prayer for interest was required, and when the plaintiff later filed an application to add such a request, it was rejected by the NCDRC on the same grounds.

62.Regarding the non-impleadment of the employer and the Bihar Medical Council, the plaintiff alleged that the defendant had been negligent in excluding these parties as opposite parties in the consumer complaint. The defendant dismissed this claim as a misinterpretation of legal principles, explaining that employers of deceased patients are not necessary parties in medical negligence claims. Similarly, the plaintiff's assertion that Tata Main Hospital should have been named as Opposite Party No.1 instead of the doctor was legally unfounded, as the cause title arrangement does not affect liability determination in consumer cases.

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63.The defendant further contended that the plaintiff's malicious litigation had severely damaged his professional reputation and caused immense mental distress. The plaintiff deliberately circulated copies of the suit in the Supreme Court's advocate chambers, leading to unwarranted speculation among his peers and professional colleagues. Conversations in the Supreme Court's common canteen further confirmed that the case had been weaponized to tarnish the defendant's name.

64. Given the malicious nature of the suit, the defendant decided to counterclaim for defamation, harassment, mental agony, and financial loss, limiting the claim to Rs. 3 lakhs for jurisdictional purposes, though the actual damages were far greater.

65. To substantiate his defense, the defendant relied on multiple judicial orders from NCDRC, Delhi High Court, and the Supreme Court, including:

- o Final rulings from NCDRC in various appeals and review petitions.
- o High Court orders in Writ Petition, LPA, and Review Petitions, all confirming the validity of the doctor's degree.
- o Supreme Court's dismissal of the plaintiff's Special Leave Petition (SLP) in 2018, further affirming the findings of lower courts.

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66. The defendant asserted that the entire case was a misuse of the legal system, aimed at harassing and defaming him for personal and media-driven motives. The plaintiff had repeatedly suppressed unfavorable judicial findings, filed baseless applications, and disregarded sound legal advice. Given these facts, the defendant sought dismissal of the suit and a counterclaim for damages.

Cross-Examination of DW-1

67. During cross-examination, DW-1 confirmed that the plaintiff had engaged his services in January 2013 for filing a consumer complaint at NCDRC concerning allegations of medical negligence. He denied any omission in the drafting of the consumer complaint, including the failure to implead the employer of the deceased or to seek interest on compensation.

68. Regarding his professional engagements with Tata Group companies, DW-1 stated that he had been representing them in NCDRC matters since at least 2010. He denied the assertion that he had been offered multiple cases by Tata Group only after taking up the plaintiff's case. When questioned on potential conflicts of interest, he stated that he could not recall specific provisions of the Advocates Act, 1961, without referring to the statute.

69. On the issue of the accused doctor's medical qualifications, DW-1 maintained that judicial proceedings should be based CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .33/41 on clear and irrefutable evidence rather than allegations or suspicions. He acknowledged that he had advised the plaintiff against challenging the medical qualifications of the doctor in NCDRC due to a lack of concrete proof. He further stated that unless reliable material was provided, he would consider a doctor in regular medical practice as duly qualified.

70. When asked about the legal findings on the accused doctor's degree, DW-1 stated that the Single Bench of the Hon'ble Delhi High Court had upheld the validity of the MBBS degree, a finding later affirmed by the Division Bench. The plaintiff's Special Leave Petition before the Hon'ble Supreme Court had also been dismissed in limine. He described the plaintiff's allegations of fraud and deceit in securing these judgments as baseless and noted that filing multiple cases did not establish the veracity of such allegations.

71. Regarding criminal cases against Tata Steel and the accused doctor, DW-1 admitted to knowledge of certain FIRs based on documents filed in the present case but reiterated that the existence of an FIR or legal proceedings alone does not prove the allegations. He denied any awareness of alleged fraud played upon Hon'ble Delhi High Court and stated that obtaining orders through deceit was not a simple matter.

72. When questioned about the expunging of the expert medical opinion of Dr. Deepak Ranjan Das, DW-1 confirmed that the NCDRC had removed the opinion after the witness CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .34/41 refused to answer interrogatories. He disagreed with the plaintiff's interpretation of Dr. Kunal Saha's case, stating that the ruling only applied where the opposite party failed to cross-examine a witness, which was not the situation in the present case. He rejected the suggestion that he had conspired with Tata Steel to suppress the expert opinion.

73. DW-1 also confirmed that he was aware that the plaintiff had later persuaded NCDRC to reinstate Dr. Deepak Ranjan Das's expert opinion, but he asserted that compelling a reluctant witness to testify could be risky. He pointed out that the plaintiff had not placed the doctor's replies to interrogatories before this Hon'ble Court, implying that they may not have been favorable to the plaintiff's case.

74. Regarding the cause title of the consumer complaint, DW-1 stated that Dr. Atul Chhabra was named as Opposite Party No. 1 because he was the treating doctor, and there was no fixed liability ratio between a hospital and a doctor in medical negligence cases. He refuted allegations that the cause title had been deliberately framed to shield Tata Steel from reputational harm.

75. He acknowledged that NCDRC had rejected the plaintiff's recent attempt to modify the cause title, a decision strongly opposed by Tata Steel. However, he denied any involvement in corporate image management for Tata Steel and instead stated that he had suffered significant professional and reputational damage due to the plaintiff's "malicious and frivolous" allegations.

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Analysis and Findings

76. The issues are adjudicated as under:-

Issue 1:

Whether counter claimant is entitled to decree for recovery of damages of an amount of Rs. 3,00,000/-, along with interest, as prayed for in prayer clause (a)? OPCC.

77.The Onus to prove this issue was upon the Counter Claimant. Prayer clause (a) of the Counter Claim reads as follows:-

"Decree damages of Rs.300,000 (Three Lakhs only) to the Defendant/Counter claimant with interest."

78.In the present case, the counter claimant has sought damages amounting to Rs. 3,00,000/-, asserting that the plaintiff's suit was malicious, defamatory, and intended to tarnish his professional reputation. He contends that the plaintiff deliberately suppressed material judicial findings, including orders from the Hon'ble Delhi High Court and the Hon'ble Supreme Court, which upheld the qualification of the doctor whose credentials were in question. According to the counter claimant, the plaintiff's allegations of professional negligence were entirely unfounded and were made with the sole intent to harass him. The counter claimant further claims that the plaintiff's actions went beyond legal proceedings and extended to circulating copies of the suit in Hon'ble Supreme Court chambers. This, he argues, led to significant mental distress and professional CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .36/41 embarrassment, casting unwarranted aspersions on his integrity as a legal professional.

79.The plaintiff, on the other hand, contends that the counterclaim is merely an attempt to suppress his legitimate grievances regarding the defendant's legal representation. He argues that his suit was filed in good faith, based on the professional lapses and conflict of interest he perceived in the counter claimant's conduct. He further asserts that his allegations were neither defamatory nor malicious but arose from the deficiencies he experienced in the handling of his case. The plaintiff maintains that he had every right to pursue legal action to seek redressal of his grievances, including the refund of fees paid to the counter claimant for legal services that, in his view, were inadequate and compromised.

80.In assessing whether the counter claimant is entitled to damages, it is necessary to determine whether the plaintiff's actions caused measurable reputational harm beyond the ordinary consequences of litigation. Defamation claims require proof that statements made were false and intended to cause injury. While the counter claimant may have experienced professional embarrassment due to the allegations, there is no concrete evidence to suggest that the plaintiff's claims were knowingly false or made with the intent to damage his reputation rather than to seek legitimate relief. The plaintiff's grievances appear to stem from his perception of legal lapses, and criticisms of legal CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .37/41 representation, even if strong, do not automatically constitute defamation.

81.A mere assertion that litigation is malicious does not entitle a party to damages unless there is clear evidence of abuse of process. Every litigant has the right to seek legal recourse, and a case cannot be dismissed as malicious unless it is entirely devoid of factual basis. The plaintiff, in this instance, has provided documentary evidence, email correspondences, and judicial records to

substantiate his claims. While the merit of his case is a separate question, the fact that his allegations are backed by material evidence negates the argument that the suit was filed solely to harass the counter claimant.

82. Even if some harm to reputation is presumed, the counter claimant must establish a quantifiable loss to justify monetary damages. Defamation or reputation damage claims generally require proof of professional setbacks, financial losses, or mental distress requiring compensation. There is no evidence on record to show that the counter claimant suffered any decline in professional engagements, financial hardship, or adverse consequences as a direct result of the plaintiff's suit. No material has been placed before the court to substantiate the claim that his practice suffered, that he lost clients, or that his professional standing was irreparably harmed.

83. The counter claimant's demand for Rs. 3,00,000/- lacks any substantiated basis. In the absence of concrete proof of CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .38/41 actual loss or damages, the claim appears to be speculative rather than demonstrable. The legal principle that the mere filing of a suit does not automatically entitle the opposing party to damages applies in this case. Since the plaintiff's suit is based on substantive legal grievances and not mere personal vendetta, the counter claimant's claim for damages is found to be without merit and is, therefore, liable to be dismissed.

84. This issue is decided against the Counter Claimant.

Issue 2:

Whether the present suit has been filed without any cause of action? (OPR)

85. The Onus to prove this issue was upon the respondent. The respondent contends that the present suit is devoid of any cause of action. It is argued that the counter claimant has not disclosed any legally sustainable grounds warranting judicial intervention.

86. A suit is said to be without cause of action if it does not disclose any legal injury or enforceable right. A mere assertion by the respondent that no cause of action exists is not sufficient unless the pleadings are entirely devoid of material facts indicating any legally tenable claim.

87. Upon perusal of the pleadings and documents on record, it is evident that the counter claimant has raised substantial allegations, which prima facie warrant judicial CS SCJ 1170/22 T.V. GEORGE (COUNTER CLAIM) Vs. SHISHIR CHAND PAGE NO .39/41 determination. The existence of disputed facts and allegations that require evidence precludes the suit from being dismissed at the threshold for lack of cause of action.

88. Accordingly, the issue is decided against the defendant and in favor of the plaintiff.

Issue 3:

Whether appropriate court fees have not been filed in the present matter? (OPR)

89.The Onus to prove this issue was upon the respondent. The respondent has challenged the sufficiency of the court fee paid by the counter claimant, contending that the suit is undervalued. The counter claimant, however, asserts that the court fee has been correctly computed as per the relief sought.

90.The determination of appropriate court fee depends upon the nature of relief claimed. If the suit involves a monetary claim, the valuation should be in accordance with the sum sought to be recovered. Upon perusal of the record, it appears that the counter claimant has valued the suit appropriately as per the claim for recovery. The respondent has not furnished any concrete evidence or legal provision demonstrating that the court fee paid is deficient.

91.In the absence of any substantive proof indicating underpayment of court fee, the issue is decided against the respondent and in favor of the counter claimant.

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92.In view of the aforesaid analysis and findings, no relief can be granted to the counter claimant. The instant counter claim is hereby dismissed.

93.No Order as to costs.

94.Decree Sheet be prepared accordingly.

File be consigned to record Room after due compliance.

Announced in the open court JINDAL on 07.03.2025.	ANURADHA (ANURADHA JINDAL)	JINDAL Date: 2025.03.07 16:18:15 +0530
ASCJ-cum-JSCC-CUM-GJ (South) Saket Courts, New Delhi		

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